

FORM-INC-13

MEMORANDUM OF ASSOCIATION

Of

SAKAAR MICROCREDIT FOUNDATION

[PURSUANT TO RULE 19 (2) THE COMPANIES (INCORPORATION AND
INCIDENTAL) RULES, 2014]

1. The Name of the Company is **SAKAAR MICROCREDIT FOUNDATION**.
2. The Registered Office of the Company will be situated in the STATE OF **UTTAR PRADESH**.
3. The objects for which the Company is established are:-

A. MAIN OBJECTS OF THE COMPANY ARE:

(a) To promote micro finance credit and essential services for socio-economic development and self-reliance for socially and economically marginalized groups specifically rural & semi-urban women and their families living below poverty line (BPL) and promote savings & thrift habit among them, not with the motive of the profit.

(b) No objects of the company will be carried out without obtaining the prior approval /no objection from the concerned authority, wherever required.

(c) None of the objects of the Company shall be carried out on commercial basis.

(d) To open accounts in Banks and to draw, accept, take and endorse, discount and negotiate bills of exchange, bills of lading, hundies, promissory notes and other negotiable instruments connected with business of the Company and to accept deposit from members at any time on such rates of interest and subject to such rules and regulations as may be fixed by the board of directors and also subject to the directives issued by the RBI in this behalf from time to time. Deposits may be received on savings, fixed, recurring, and cumulative and under any other special scheme.

The doing of all such other lawful things as considered necessary for the furtherance of the above objects :

Provided that the company shall not support with its funds, or Endeavour to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union

4. The objects of the company extend to the whole of India.

5. (i) The profits, if any, or other income and property of the company, whensoever Derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.
- (ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.
- (iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.
- (iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.
- (v.) Nothing in clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudent remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company;
6. No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.
7. The liability of the members is limited.
8. The Authorized Share Capital of the Company is Rs.1,00,000/- (Rupees One Lac only) divided into 10,000 (Ten Thousand) Equity Shares of Rs.10/- (Rupees Ten) each, with power to increase or reduce the share capital of the Company and to cancel any number of un-allotted shares and to divide the shares in the capital for the time being into different classes and to attach thereto respectively such preferential, qualified or special rights, privileges or conditions as may be determined in accordance with the regulations of the company and subject to the provisions of the Sections 48,55,66 and other applicable provisions of the Companies Act, 2013. The Company may alter the conditions of the Memorandum relating to share Capital in accordance with Section 61 of the Companies Act, 2013.
9. True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members.

Once at least in every year, the accounts of the company shall be examined and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors.
10. If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under section 269 of the Act.
11. The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

We the several persons, whose names and addresses are subscribed below, are desirous of being formed into a company in pursuance of this Memorandum of Association and we respectively agree to take the number of shares in the capital of the company set opposite our respective names in case of not for profit company.

Sl. No.	Name, father's name, Address and occupation of Subscriber	Signature of Subscriber	Number of Equity Share Taken by each subscriber	Signature, Name, Father's name, Address Occupation of Witnesses
	Madan Kumar, Son of S/o Manoj SA 22/168-E-58 Ashapur Soad Purana Pul Sema Varansi (Business)	Madan Kumar	2500 EQUITY SHARE	I hereby witness to the subscribers who have signed in my presence on 22.9.2016 at Varanasi. I have verified and satisfied myself about the particulars filed in. S/o Late D. R. Shrivastava 304, Anand Aptt, Sant Nagar, Varanasi (Company Secretary) P.O. 4278
	Santosh Kumar s/o Late. DURJAN RAJ KHARAGPUR TILSARA GHAZI PUR (U.P) 22308 (BUSINESS)	Santosh Kumar	2500 Equity Share	
	Shaidender Kumar S/o Khichu Kumar Daryapur Bharat Ghazi Pur UP (Business)	Shaidender Kumar	2500 EQUITY SHARE	
	Kam Bhanu s/o Harchand H.No 446 BASAI Ghazipur Haryana (Business)	Kam Bhanu	2500 Equity SHARE	

DATE: 22.09.2016

PLACE: VARANASI